

Cloud Subcontracting Agreement

Illustrative amendment-aware version

Parties and Background

This Agreement is entered into between the Customer and Provider identified in Schedule A. It concerns the provider subcontracting hosting to hyperscaler. The parties intend to establish clear responsibilities for security, service continuity, incident management and regulatory cooperation.

Agreement

1. Definitions

Services means the cloud, hosting, managed IT, cybersecurity, disaster-recovery or related services described in the applicable service schedule.

Customer Data means information submitted to or processed through the Services by or for the Customer.

Security Incident means an actual or reasonably suspected compromise of the confidentiality, integrity or availability of the Services or Customer Data.

2. Services

The Provider shall provide the Services in accordance with the service description and service levels agreed between the parties. The Provider shall maintain appropriately documented operational and security procedures for the Services.

3. Security

The Provider shall maintain reasonable administrative, technical and physical safeguards appropriate to the nature of the Services. Such safeguards shall include access controls, authentication controls, logging and monitoring, vulnerability management, backup arrangements and incident-response procedures appropriate to the Services.

4. Customer Responsibilities

The Customer shall identify its critical systems and data, maintain appropriate access permissions, and comply with applicable laws and regulatory requirements. The Customer shall promptly notify the Provider of material security requirements relevant to the Services.

5. Third-Party Providers and Subcontractors

The Provider may use subcontractors where permitted by the Agreement. The Provider shall remain responsible for the performance of subcontracted Services and shall maintain appropriate contractual security requirements.

6. Security Incidents

The Provider shall notify the Customer without undue delay after becoming aware of a material Security Incident affecting the Services or Customer Data. The parties shall cooperate in investigation, containment, remediation and evidence preservation.

7. Business Continuity and Disaster Recovery

The Provider shall maintain continuity and recovery measures appropriate to the agreed service levels. Recovery objectives, backup arrangements and testing requirements shall be documented in the relevant service schedule.

8. Audit and Assurance

The Provider shall provide reasonable information and assurance concerning its security controls, including relevant independent assurance reports where available. The Customer may conduct reasonable compliance reviews subject to appropriate confidentiality and operational safeguards.

9. Regulatory Change and Expanded Cybersecurity Obligations(a) The parties acknowledge that the applicable cybersecurity framework may impose obligations on CII owners and other regulated entities, including in relation to cloud

computing, supply-chain incidents, and prescribed cybersecurity incidents.(b) The Customer remains responsible for complying with obligations applicable to it as a CII owner notwithstanding its use of outsourced or cloud infrastructure.(c) The Provider shall reasonably cooperate with the Customer in assessing and responding to cybersecurity incidents affecting the Services or relevant supply chains, including providing information reasonably required for regulatory reporting.(d) Where the Provider is itself subject to applicable cybersecurity obligations, the Provider shall maintain procedures reasonably designed to meet those obligations and shall notify the Customer of material regulatory directions affecting the Services.10. Regulatory CooperationEach party shall promptly notify the other of material regulatory requirements affecting the Services and cooperate in good faith on necessary contractual, operational and security changes.

11. Confidentiality and Data Protection

Each party shall protect confidential information received from the other. The Provider shall process Customer Data only for authorised purposes and in accordance with applicable data-protection requirements.

12. Termination and Exit

Upon termination, the Provider shall cooperate with an orderly transition and return, export or deletion of Customer Data as agreed, subject to applicable legal retention requirements.

13. Liability

The parties shall allocate liability for security incidents, service failures and breaches in accordance with the commercial terms agreed in the applicable schedule.

14. Governing Law

This Agreement is governed by the laws specified in the execution schedule.

SCHEDULE A SERVICE DETAILSCustomer: IT provider subcontracting hosting to hyperscalerService context: IT provider subcontracting hosting to hyperscalerRegulatory context: Primary vendor; flow-down obligations and regulatory cooperationAmendment status: Amendment-aware baseline

SIGNATURES

Customer: _____ Date: _____

Provider: _____ Date: _____